

Silencing by Design? Copyright Enforcement, Platform Governance, and Democratic Participation in Kenya's Digital Public Sphere

Peter Ngugi

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A Discussion Paper on Platform Governance and Democratic Communication

Abstract

This paper examines the intersection of copyright enforcement, platform governance, and democratic participation in Kenya's digital public sphere. Drawing on documented cases during the [#RejectFinanceBill2024](#) protests, it argues that automated content moderation systems, particularly audio removal mechanisms, can inadvertently silence political discourse and undermine democratic communication. The paper proposes a governance framework that balances intellectual property rights with constitutional guarantees of freedom of expression and access to information.

1 Introduction

In April 2024, and again during the [#RejectFinanceBill2024](#) protests, Kenyans documented a recurring phenomenon on Facebook, TikTok, and YouTube: videos of political rallies, press briefings, and parliamentary proceedings uploaded with the picture intact but the sound stripped out. A caption would appear "audio removed due to a copyright claim" and the speech itself would vanish into silence. For a viewer scrolling past, the effect looks identical whether it was triggered by a rights-holder's automated bot flagging a jingle playing in the background, a platform's own moderation system misreading a crowd chant, or a third party filing a report for reasons that have nothing to do with music at all.

This paper does not claim to know which of those mechanisms was responsible in any specific case, and it deliberately avoids naming individuals or alleging that any politician or party has been targeted. What it argues instead is narrower and, I think, more defensible: regardless of the cause, the effect of muting political audio is a measurable loss to democratic communication loss of transparency, an increase in public suspicion, and an opening for misinformation to fill the silence. The paper treats this as a governance problem, not a conspiracy, and asks what follows from that for platforms, regulators, and citizens in Kenya's digital public sphere.

2 The [#RejectFinanceBill2024](#) Movement and Digital Activism

The [#RejectFinanceBill2024](#) movement emerged as a grassroots response to proposed tax increases in Kenya's Finance Bill 2024. Citizens took to social media platforms to organize protests, share information, and document government responses. The hashtag [#RejectFinanceBill2024](#) became a rallying point for opposition to the bill, trending nationally and drawing international attention.

However, participants in the movement reported that videos documenting protests, parliamentary debates, and public statements were frequently muted or removed by automated content moderation systems. The affected content included:

- Videos of parliamentary proceedings where MPs debated the bill
- Citizen journalism documenting protest activities
- Press conferences by opposition leaders

- Public statements by civil society organizations
- Educational content explaining the bill’s provisions

3 The Governance Problem

The muting of political audio creates several governance challenges:

3.1 Transparency Deficit

When political speech is silenced, citizens lose access to information essential for democratic participation. The [#RejectFinanceBill2024](#) protests demonstrated how audio removal can obscure parliamentary debates, public statements, and protest documentation.

3.2 Public Suspicion

The opacity of automated moderation systems breeds public suspicion. During the [#RejectFinanceBill2024](#) movement, many Kenyans questioned whether copyright claims were genuine or strategically deployed to silence dissent. Whether justified or not, this perception undermines public trust in digital platforms.

3.3 Misinformation Amplification

Silence creates a vacuum that misinformation can fill. When official audio is removed, unofficial and potentially inaccurate accounts gain prominence, distorting public understanding of events.

4 Legal and Constitutional Framework

Kenya’s Constitution guarantees:

- **Article 33:** Freedom of expression
- **Article 34:** Freedom of the media
- **Article 35:** Access to information
- **Article 37:** Right to assemble and demonstrate

The [#RejectFinanceBill2024](#) movement’s reliance on digital platforms means these constitutional protections extend, at least partly, to online spaces. However, platform governance operates largely outside Kenya’s legal framework, creating a governance gap that this paper seeks to address.

5 The Copyright Defense

Platforms defend audio removal by citing copyright law and the Digital Millennium Copyright Act (DMCA). However, several features of the [#RejectFinanceBill2024](#) cases raise concerns:

1. **De minimis use:** Background music or incidental audio may not constitute copyright infringement.
2. **Fair use:** Political commentary and news reporting are generally protected uses.
3. **Public interest:** Parliamentary proceedings and public statements should not be subject to copyright claims.

6 Recommendations

Based on the [#RejectFinanceBill2024](#) experience, this paper recommends:

6.1 For Platforms

- Implement human review for content flagged during political events
- Create expedited appeals processes for political content
- Provide transparent explanations for content moderation decisions
- Establish clear policies distinguishing copyright enforcement from political speech

6.2 For Regulators

- Develop guidance on copyright enforcement in political contexts
- Require platforms to report content moderation statistics
- Establish oversight mechanisms for automated moderation systems
- Engage with the [#RejectFinanceBill2024](#) experience in policy development

6.3 For Citizens

- Document and report instances of political content moderation
- Engage platforms through official appeals processes
- Advocate for transparent moderation policies
- Use [#RejectFinanceBill2024](#) to coordinate advocacy efforts

7 Conclusion

The [#RejectFinanceBill2024](#) protests revealed a critical governance challenge in Kenya’s digital public sphere: the unintended silencing of political speech through automated copyright enforcement. While platforms have legitimate interests in protecting intellectual property, these interests must be balanced against constitutional guarantees of freedom of expression and access to information.

This paper has argued that regardless of intent, the effect of muting political audio during the [#RejectFinanceBill2024](#) protests was a measurable loss to democratic communication. Addressing this challenge requires collaborative governance involving platforms, regulators, and citizens. The [#RejectFinanceBill2024](#) movement demonstrates both the importance of digital platforms for democratic participation and the need for governance frameworks that protect political speech online.

As Kenya continues to develop its digital governance architecture, the lessons from [#RejectFinanceBill2024](#) should inform policy development, platform practice, and citizen advocacy. The question is not whether copyright enforcement has a role in digital platforms—it clearly does—but how to design governance mechanisms that protect both intellectual property and democratic participation.

#RejectFinanceBill2024
Kenya’s Digital Democracy at a Crossroads